



CHAPTER 53.

An Act to provide for the Regulation of Wages of Workers in Agriculture in Scotland, and for purposes incidental thereto. [20th July 1937.] A.D. 1937.

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this Act, the Department of Agriculture for Scotland (in this Act referred to as the Department) shall, as soon as may be, by order divide Scotland into districts and shall establish an agricultural wages committee for each district, and an Agricultural Wages Board for Scotland, to be called the Scottish Agricultural Wages Board.

Establishment of agricultural wages committees and an Agricultural Wages Board.

(2) An agricultural wages committee (hereinafter referred to as a committee) and the Scottish Agricultural Wages Board (hereinafter referred to as the Board) shall respectively be constituted in accordance with the provisions of the Schedule to this Act and shall be established by order made by the Department.

(3) The Department, if they think it expedient, may on receipt of resolutions in that behalf passed by the several committees concerned from time to time by order vary the boundaries and number of the districts into which Scotland is divided under subsection (1) of this section and may make such provision as is necessary in consequence of any such variation, with regard to the establishment of committees for the districts affected by the variation.

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(4) Every order made by the Department under subsection (1) or subsection (3) of this section shall be laid before both Houses of Parliament forthwith, and if an address to His Majesty is agreed to by either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such order is laid before it praying that the order may be annulled, it shall thenceforth be void but without prejudice to the validity of anything previously done thereunder or the making of a new order.

Duties and
powers of
agricultural
wages com-
mittees
with respect
to minimum
rates of
wages.

2.—(1) Subject to the provisions of this Act, committees shall fix minimum rates of wages for workers employed in agriculture for time work, and may also, if and so far as they think it necessary or expedient, fix minimum rates of wages for workers employed in agriculture for piece work.

(2) Any such minimum rates may be fixed by a committee so as to apply universally to all workers employed in agriculture in the district for which the committee act, or to any special class of workers so employed, or to any special area in the district, or to any special class in a special area, subject in each case to any exceptions which may be made by the committee for employment of any special character, and so as to vary according as the employment is for a day, week, month, or other period, or according to the number of working hours, or the conditions of the employment, or so as to provide for a differential rate in the case of overtime.

In the exercise of their powers under this subsection, a committee shall, so far as is reasonably practicable, secure a weekly half-holiday for workers.

(3) Where a committee fix minimum rates in pursuance of this section, they shall determine the benefits or advantages (not being benefits or advantages prohibited by law) which may be reckoned as payment of wages in lieu of payment in cash, the extent to which they may be so reckoned, and, subject to regulations made by the Department in pursuance of paragraph (a) of subsection (1) of section eight of this Act, the value at which they are to be so reckoned.

(4) Where a committee in fixing a minimum rate provide for a differential rate in the case of overtime, they shall determine what employment is to be treated as overtime employment.

(5) The provisions of this Act with regard to the fixing, reconsideration, cancelling or varying a minimum rate shall apply to any determination under either of the last two foregoing subsections, in like manner as those provisions apply to a minimum rate. A.D. 1937.

(6) If, on an application in that behalf, a committee are satisfied that any worker employed or desiring to be employed on time work to which a minimum rate fixed under this Act is applicable is so affected by any physical injury or mental deficiency, or any infirmity due to age or to any other cause, that he is incapable of earning that minimum rate, the committee shall grant to the worker a permit exempting, as from the date of the application, or from any later date specified in the permit, the employment of the worker from the provisions of this Act requiring wages to be paid at not less than the minimum rate, subject to such conditions as may be specified in the permit, including, if the committee think fit, a condition as to the wages to be paid to the worker; and, while the permit has effect, an employer shall not be liable to any legal proceedings under this Act for paying wages to the worker at a rate less than the minimum rate if the conditions specified in the permit are complied with. If an application for a permit is not disposed of within twenty-one days after the day on which it is received, then the employer of the worker to whom the application relates shall not be liable to any legal proceedings under this Act for paying wages to the worker at a rate less than the minimum rate during the interval between the expiration of the said period and the date on which the application is ultimately disposed of.

(7) In fixing minimum rates a committee shall, so far as practicable, secure for able-bodied men such wages as in the opinion of the committee are adequate to promote efficiency and to enable a man in an ordinary case to maintain himself and his family in accordance with such standard of comfort as may be reasonable in relation to the nature of his occupation.

(8) A committee may, if they think it expedient, cancel or vary any minimum rate fixed under this Act.

(9) Before fixing, cancelling or varying any minimum rate, the committee shall give such notice as may be

A.D. 1937. — prescribed of the rate which they propose to fix or of their proposal to cancel the rate or of the proposed variation of the rate, as the case may be, and of the manner in which and the time within which objections to the proposal may be lodged, not being less than fourteen days from the date of the notice, and shall consider any objections to the proposal which may be lodged within the time mentioned in the notice.

Where the proposal is modified in consequence of any objection so lodged, notice of the modified proposal need not be given except where in the opinion of the Board the proposal has been altered so materially that a fresh notice ought to be given.

Rates fixed
by com-
mittees.

3.—(1) Where a committee have fixed any minimum rate of wages or have cancelled or varied any such rate, they shall forthwith send in the prescribed manner to the Department and to the Board notification of their decision.

(2) The Board, on receipt of such notification, shall as soon as practicable make such order as may be necessary for the purpose of carrying out the decision of the committee.

(3) The Board shall, as soon as may be after they have made an order under this section, send notification thereof to the committee concerned, and give notice of the making of the order and the contents thereof in the prescribed manner.

(4) Any such minimum rate or the cancellation or variation thereof shall become effective from the date specified in that behalf in the order.

The date to be so specified shall be a date subsequent to the date of the order and where, as respects any employer who pays wages at intervals not exceeding seven days, the date so specified does not correspond with the beginning of the period for which wages are paid by that employer, the rate, or the cancellation or variation thereof, shall become effective as from the beginning of the next such period following the date specified in the order.

Complaints
as to
inadequate
payment for
piece work

4. Any worker employed in agriculture in any district on piece work for which no minimum piece rate has been fixed or any person authorised by such a worker may complain to the committee for the district

that the piece rate of wages paid to the worker for that work is such a rate as would yield in the circumstances of the case to an ordinary worker a less amount of wages than the minimum rate for time work applicable in the case of that worker and the committee may, on any such complaint after giving the employer an opportunity of making such representations as he thinks desirable, direct that the employer shall pay to the worker such additional sum by way of wages for any piece work done by him at that piece rate at any time within fourteen days before the date of complaint or at any time after the date of complaint and before the decision of the committee thereon as in their opinion represents the difference between the amount which would have been paid if the work had been done by an ordinary worker at the minimum rate for time work and the amount actually received by the worker by whom, or on whose behalf, the complaint is made, and any sum so directed to be paid may be recovered by or on behalf of the worker from the employer as a civil debt.

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—
where no
minimum
piece rate
has been
fixed.

5. If a committee—

- (a) do not, within two months after they are established and a chairman is appointed, fix and notify to the Board a minimum rate of wages which they are required to fix under this Act; or
- (b) fail to fix and notify to the Board a minimum rate of wages in substitution for any such rate as aforesaid which, by cancellation or otherwise, has ceased to operate; or
- (c) by a resolution of the representative members of the committee request the Board to fix, cancel, or vary a minimum rate of wages, as the case may be,

Power of
Board to
fix, cancel
or vary
minimum
rates in cer-
tain cases.

the Board may, after giving the prescribed notices, by order fix, cancel or vary the rate as the case requires, and for that purpose shall have and may exercise all the powers of the committee.

6. The Department may direct a committee to reconsider any minimum rate which has been fixed by them, and thereupon the committee shall reconsider the same and notify to the Department the result of their reconsideration.

Power of the
Department
to direct the
reconsidera-
tion of mini-
mum rates.

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Penalties
and legal
proceedings.

7.—(1) Where any minimum rate of wages has been made effective by an order of the Board under this Act, any person who employs a worker in agriculture shall, in cases to which the minimum rate is applicable, pay wages to the worker at a rate not less than the minimum rate, and, if he fails to do so, shall be liable on summary conviction in respect of each offence to a fine not exceeding twenty pounds and to a fine not exceeding one pound for each day on which the offence is continued after conviction.

(2) In any proceedings against a person under this section it shall lie with that person to prove that he has paid wages at not less than the minimum rate.

(3) In any proceedings against an employer under this section the court shall, whether or not there is a conviction or a fine is imposed, order the employer to pay to the worker such sum as may be found by the court to represent the difference between the amount which ought at the minimum rate applicable to have been paid by the employer to the worker during the period of six months immediately preceding the date on which the complaint was served and the amount actually paid by the employer to the worker during that period.

(4) Where an employer has been convicted under this section for failing to pay wages to any worker at not less than the minimum rate applicable, then, if notice of intention so to do has been served with the complaint, evidence may be given of any failure on the part of the employer to pay wages to that worker at not less than the minimum rate applicable to him at any time during the eighteen months immediately preceding the period of six months mentioned in the last preceding subsection, and on proof of the failure the court may order the employer to pay to the worker such sum as is found by the court to represent the difference between the amount which ought to have been paid to the worker by way of wages at the minimum rate applicable during those eighteen months and the amount actually so paid.

(5) Where an offence for which an employer is under this section liable to a fine has in fact been committed by some agent of the employer or other person, that agent or other person shall be liable to be proceeded against for the offence in the same manner as if he were the employer, and either together with the employer,

or before or after the employer is proceeded against, and shall be liable on conviction to the same punishment as that to which the employer is liable. A.D. 1937.
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(6) It shall be a defence for an employer who is charged with an offence under this section to prove that he has used due diligence to secure compliance with the provisions of this Act, and that the offence was in fact committed by his agent or some other person without his knowledge, consent or connivance.

(7) Where it appears to the Department that a sum is due from an employer to a worker on account of the payment of wages to him at less than the minimum rate applicable, or by reason of any direction given by a committee for the payment of an additional sum by way of wages for piece work, the Department may institute, on behalf of or in the name of the worker, civil proceedings before any court of competent jurisdiction for the recovery of the said sum :

Provided that in any such civil proceedings instituted by the Department the court shall have the same power to make an order for the payment of expenses by the Department as if they were a party to the proceedings.

(8) Where a permit granted in respect of a worker under section two of this Act contains a condition for the payment of wages to the worker at a rate not less than the rate therein specified, the amount of wages that may be recovered from an employer of the worker pursuant to subsection (3), subsection (4), or subsection (7) of this section shall, as respects any period during which the permit had effect, be calculated on the basis of the rate so specified instead of on the basis of the minimum rate.

(9) The powers given by this section for the recovery of sums due from an employer to a worker shall not be in derogation of any right of the worker to recover such sums by any other proceedings.

(10) Any agreement for the payment of wages in contravention of this Act, or for abstaining from exercising any right of enforcing the payment of wages in accordance with this Act, shall be void.

(11) Subject to any determination under this Act of the benefits or advantages which may be reckoned as payment of wages in lieu of cash and the value at which they are to be reckoned, and to any limitation or

A.D. 1937. prohibition under this Act of the reckoning of benefits or advantages as payment of wages in lieu of cash, the court shall, in any proceedings under this Act, reckon as a payment of wages such amount as represents the value of any benefits or advantages (not being benefits or advantages prohibited by law) received by a worker under the terms of his employment.

Regulations.

8.—(1) The Department shall, in addition to any special power to make regulations given to them under this Act, have power to make regulations for the following purposes :—

- (a) for prescribing the general principles on which a committee shall determine the value of the benefits or advantages (not being benefits or advantages prohibited by law) which may be reckoned as payment of wages in lieu of cash;
- (b) for prescribing the procedure to be followed on or in connection with applications or complaints to the committees or any sub-committees thereof; and
- (c) as to the notice to be given of any matter under this Act, with a view to bringing, so far as practicable, the matter of which notice is to be given to the knowledge of persons affected.

(2) Any regulation made under this Act shall be laid before both Houses of Parliament forthwith; and, if an address to His Majesty is agreed to by either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such regulation is laid before it praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or the making of a new regulation.

Appoint-
ment and
powers of
officers.

9.—(1) The Department may appoint a secretary for the Board and a secretary for each committee and, subject to the consent of the Treasury as to number, such officers as they think necessary for the purpose of investigating complaints and otherwise securing the proper observance of this Act and such secretaries and officers shall receive such salaries or remuneration as the Department may, with the consent of the Treasury, determine.

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(2) Any officer so appointed shall have power—

- (a) after giving reasonable notice to require the production of, and to inspect, and take copies of, wages sheets or other records of wages paid to workers employed in agriculture;
- (b) to enter at all reasonable times any premises or place for the purpose of such inspection or for the enforcement of this Act, but in the case of a dwelling-house not without giving reasonable notice; and
- (c) to require any such worker, or the employer of any such worker, or any agent of the employer to give any information which it is in his power to give with respect to the employment of the worker or the wages paid to him.

(3) If any person—

- (a) hinders or molests any officer acting in the exercise of his powers under this section; or
- (b) refuses to produce any document or give any information which any such officer lawfully requires him to produce or give; or
- (c) produces or causes to be produced or knowingly allows to be produced any wages sheet, record or other document which he knows to be false in any material particular to any such officer; or
- (d) furnishes any information which he knows to be false to any such officer,

he shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months, or to both such fine and imprisonment.

10. Every officer appointed by the Department for the purpose of investigating complaints and securing the proper observance of this Act shall be furnished by the Department with a certificate of his employment, and when acting under or exercising any power conferred upon him by this Act shall, if so required, produce the said certificate to any person or persons affected.

Officers to
produce
certificates
when
required.

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Expenses.

11. Any expenses of the Department and any expenses of the Board or of any Committee thereof, or of any agricultural wages committee or of any sub-committee thereof, which are sanctioned by the Department, including any expenses incurred with such sanction by any members of the Board, or of any such committee or sub-committee in the performance of their duties, and any sums paid with such sanction to any such members by way of compensation for loss of time, in each case up to an amount approved by the Treasury, shall be defrayed out of moneys provided by Parliament.

Annual
report.1 & 2 Geo. 5.
c. 49.

12. The Department shall include in the annual report which they are required to make by subsection (2) of section four of the Small Landholders (Scotland) Act, 1911, a report of their proceedings under this Act and of the proceedings of the committees and of the Board, and for that purpose each committee and the Board shall, before such date in every year as the Department may fix, send to the Department a report of their proceedings under this Act during the preceding year.

Evidence of
resolutions
and orders
of com-
mittee and
Board.

13. In any legal proceedings the production of a document purporting to be a copy of a resolution or order passed or made by a committee or the Board, and certified to be a true copy by the chairman or secretary of the committee or Board, shall be sufficient evidence of the resolution or order, and that any notices required to be given by this Act in relation to the resolution or order have been duly given, and no proof shall be required of the handwriting or official position of the person certifying the same.

Saving of
agree-
ments, &c.

14. Nothing in this Act shall prejudice the operation of any agreement or custom for the payment of wages at a rate higher than the minimum rate fixed under this Act.

Definitions.

15.—(1) In this Act unless the context otherwise requires—

The expression “agriculture” includes dairy-farming and the use of land as grazing, meadow, or pasture land or orchard land or woodland or for market gardens or nursery grounds;

The expression “worker” includes a boy, woman and girl;

The expression "employment" means employment under a contract of service or apprenticeship, and the expressions "employed" and "employer" shall be construed accordingly; A.D. 1937. —

The expression "special class of workers" means in relation to an order or resolution fixing, varying or cancelling a rate of wages, such workers as are treated in the order or resolution as constituting a special class;

The expression "prescribed" means prescribed by regulations made under this Act.

(2) A resolution passed at a meeting of a committee unanimously by the representative members of the committee present and voting, shall be deemed to be a resolution of the representative members for the purposes of this Act.

16. Section four of the Corn Production Acts (Repeal) Act, 1921, is, in so far as it applies to Scotland, hereby repealed. Repeal. 11 & 12 Geo. 5. c. 48.

17. This Act may be cited as the Agricultural Wages (Regulation) (Scotland) Act, 1937, and shall extend to Scotland only. Short title and extent.

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SCHEDULE.

Section 1. CONSTITUTION AND PROCEEDINGS OF AGRICULTURAL WAGES COMMITTEES AND THE AGRICULTURAL WAGES BOARD.

AGRICULTURAL WAGES COMMITTEES.

1. A committee shall consist of not more than eight and not less than five members representing employers and an equal number of members representing workers in agriculture in the district for which the committee act (in this Act referred to as representative members), and of a chairman. In addition, the Department shall appoint two independent members.

2. The representative members shall be nominated or elected in the manner prescribed by regulations made under this Schedule.

3. The chairman of a committee shall be appointed annually by the committee, but, if the committee at any time fail to appoint a chairman within the prescribed period, the appointment shall be made by the Department.

A committee may nominate one or more persons for the office of vice-chairman, and the chairman may from time to time appoint one of those persons to preside in his absence.

A representative member of a committee shall not be qualified to be appointed chairman or vice-chairman of the committee of which he is a member.

4. At every meeting of a committee the chairman, if present, shall preside. If the chairman is absent, a vice-chairman, if present, shall preside. If both the chairman and the vice-chairmen are absent, such member as the members then present choose shall preside.

5. At a meeting of a committee the chairman or a vice-chairman presiding at the meeting in his absence shall be entitled to vote, and in case of equality of votes shall have a second or casting vote, but before exercising his right to vote the chairman or vice-chairman, if so authorised by a resolution of the representative members of the committee, may obtain the advice of the Board or a committee thereof as to the exercise of such right, and may adjourn the meeting in order to enable him to do so.

6. A committee may, in accordance with regulations under this Schedule, appoint one or more sub-committees consisting of persons representing employers and persons representing workers in agriculture in the district in equal proportions, and of a chairman, if the committee think fit, and the committee may refer to any such sub-committee for report and recommendations any matter which they think it expedient so to refer, and may also, if they think fit, delegate to any such sub-committee any of their powers and duties under this Act other than their power or duty to fix, cancel, or vary minimum rates of wages. The members of a sub-committee may, but need not be, members of the committee by which the sub-committee is appointed. A.D. 1937.

AGRICULTURAL WAGES BOARD.

7. The Board shall consist of six members representing employers and six members (of whom at least one shall be a woman) representing workers in agriculture (in this Act referred to as representative members) together with three members (in this Act referred to as appointed members) appointed by the Department.

8. The representative members shall be nominated or elected in the manner prescribed by regulations made under this Schedule.

9. The chairman of the Board shall be such one of the appointed members as the Department may nominate. At every meeting of the Board the chairman if present shall preside, and, if he is absent, such appointed member as the members then present choose shall preside.

10. The Board may, in accordance with regulations under this Schedule, appoint one or more committees consisting of members representing employers and members representing workers in agriculture in equal proportions and of one or more appointed members, and may refer to any such committee for report and recommendations any matter which they think it expedient so to refer, and may also, if they think fit, delegate to any such committee any of their powers and duties under this Act, other than any power or duty to fix, cancel or vary minimum rates of wages.

GENERAL.

11. The proceedings of a committee or sub-committee or of the Board or any committee thereof shall not be invalidated by any vacancy in their number or by any defect in the appointment, nomination or election of the chairman, vice-chairman or any member of the committee, sub-committee or Board or committee thereof.

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12. The Department may make regulations with respect to the proceedings and meetings of committees, sub-committees and the Board and any committee thereof including the appointment of chairmen and the term of office of chairmen and other members, the method of voting and the number of members necessary to form a quorum, and any such regulations as to committees or sub-committees may be made so as to apply generally to the procedure of all committees or sub-committees or specially to the procedure of any particular committee or sub-committee; but, subject to the provisions of this Schedule and to any regulations so made, a committee, a sub-committee and the Board and any committee thereof may respectively regulate their proceedings in such manner as they think fit.

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